

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

**COMPLAINANT CHINA UNITED LINES, LTD.'S
MOTION TO COMPEL FURTHER
RESPONSES FROM RESPONDENT AMAZON.COM SERVICES LLC REGARDING
REQUESTS FOR PRODUCTION OF DOCUMENTS NOS. 48-51**

I. INTRODUCTION

Complainant China United Lines, Ltd. (“China United” or “Complainant”), by and through its undersigned counsel, hereby moves to compel the production of documents in response to its First Set of Requests for Production of Documents, Nos. 48-51, (the “Document Requests”) propounded upon Respondent Amazon.com Services LLC, Amazon Logistics, Inc. and Beijing Century Joyo Courier Service Co., Ltd. (“Respondents” or “Amazon”). This Motion to Compel (the “Motion”) sets forth: (1) China United’s efforts to confer in good faith and obviate the necessity of this Motion, (2) copies of the Document Requests, (3) Amazon’s responses thereto, and (4) supporting arguments and a request for relief as required by 46 C.F.R. § 502.150. This Motion is supported by the Declaration of Bryce M. Cullinane (“Cullinane Decl.”) and the exhibits attached thereto.

This Motion seeks documents which should have been produced by Amazon during discovery: Those service contracts (and related contractual documents) Amazon entered into with other ocean carriers and documents showing whether any of those ocean carriers were terminated, and under what circumstances. Deposition testimony in this case established that ZIM publicly used the Amazon name, that ZIM did not obtain Amazon's permission to do so, and yet ZIM was not terminated “for cause” by Amazon. China United is entitled to confirm these facts in the documentary record and ascertain if any other ocean carriers violated contract terms vis-à-vis name usage, with no consequences imposed by Amazon (because of ZIM’s favorable freight rates). Amazon might be embarrassed by the hypocrisy of terminating China United for using the Amazon name, while not terminating ZIM for using the Amazon name, and so Amazon seeks here to impose

improper limits on complying with its discovery obligations which are unsupported by the Federal Maritime Commission’s Rules of Practice and Procedure (the “Rules”).

As detailed in the FAC, China United alleges that Amazon violated the Shipping Act under 46 U.S.C. § 41102(a) by wrongfully, deceitfully, and disingenuously terminating its service contract “for cause” with China United. *See* FAC, *generally*. Specifically, Amazon violated Section 41102 when it belatedly revised its termination of the Service Contract from “for convenience” to “for cause” as a means to eliminate Amazon’s Minimum Quantity Commitment from the Service Contract, and avoid paying China United amounts owed for liquidated damages. *Id.* Amazon’s handling of similar situations with other carriers would tend to prove its dishonest, deceitful, and wrongful conduct in this case. Alternatively, these documents may show that Amazon uses obscure provisions within its contracts to avoid its obligations under ocean service contracts, which behavior substantially undermines the stability of freight rates in the market. Either way, China United is entitled to reasonable discovery.

Having raised these issues with Amazon’s counsel on October 16, 2025 Cullinane Decl., ¶ 5, Ex. C), and cognizant of the close of fact discovery and depositions, China United now brings this Motion and requests that it be granted.

II. LEGAL STANDARD

The Commission’s Rules entitle parties to discovery “regarding any nonprivileged matter that is relevant to any party’s claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter.” *See* 46 C.F.R. § 502.141(e)(1). When a party from whom discovery is sought raises undue burden as an objection, they “must show that the information is not reasonably accessible because of undue burden or cost.” 46 C.F.R. §

502.141(e)(2)(i). Even when the producing party makes such a showing, “the presiding officer may nonetheless order discovery from such sources if the requesting party shows good cause.” *Id.* “In proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. “A litigant cannot limit its discovery so as to ascribe unto itself the role of judge and jury.” *Novelty, Inc. v. Mountain View Mktg., Inc.*, 265 F.R.D. 370, 378 (S.D. Ind. 2009); *see also, e.g., Johnson v. Kraft Foods N. Am., Inc.*, 236 F.R.D. 535, 541 (D. Kan. 2006) (“a party may not unilaterally withhold information or documents that are responsive to a discovery request” based on that party’s own interpretation of relevance); *Champion Foodservice, LLC v. Vista Food Exchange, Inc.*, No. 1:13-cv-1195, 2016 U.S. Dist. LEXIS 1129820, 2016 WL 4468000, at *1 (N.D. Ohio Aug. 23, 2016) (excluding evidence as a sanction against party whose “purported ‘compliance’ [with its discovery obligations] has been based on its own self-serving definition . . . of what constitutes relevant discovery under the Federal Rules” and “applying its own contrived interpretation of what the discovery rules require”). Moreover, a respondent “cannot limit its discovery to what it believes are the core issues in this proceeding nor can it require [the complainant] to produce evidence that claims are valid before producing discovery.” *MCS Indus., Inc. v. COSCO Shipping Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, FMC Dkt. No. 21-05, 2021 WL 5908366, at *3–4 (FMC ALJ Dec. 8, 2021) (granting motion to compel).

III. ARGUMENT

A. Document Request Nos. 48-51: Documents reflecting Amazon's conduct in similar situations on similar contract terms.

Respondents objects to RFP Nos. 48-51, stating that the requests seek “information regarding Amazon’s contractual relationships with other parties and contexts unrelated to this proceeding” and that “[t]his information does not relate to the issue of whether the Shipping Act was violated when Amazon invoked its contractual right to terminate the Work Order with CUL for cause.” *See* Cullinane Decl., Ex. B, Responses to Requests No. 48-51. China United alleges that Amazon revised its termination of the Service Contract to “for cause” in a deceitful manner – *an unjust or unfair device or means* – to eliminate Amazon's Minimum Quantity Commitment from the Service Contract, and avoid paying China United amounts owed for liquidated damages. *See* FAC ¶¶ 42-46. As such, discovery regarding similar contracts and breaches is highly relevant because it will likely show that Amazon is *not* enforcing its confidentiality clause in a consistent manner – thus showing that Amazon's grounds for termination “for cause” based on an alleged breach of the confidentiality provision is an unjust and unfair scheme employed by Amazon to escape liquidated damages. In the alternative, responsive documents will show a pattern and practice of Amazon cancelling service contracts by invoking obscure terms of its contract.

Carriers and shippers who enter service contracts covered by the Act must file copies of their agreements with the Commission. *See* 46 U.S.C. § 40502(b). However, these contracts are kept confidential by the Commission, and China United, which has the burden of proof on this issue, cannot readily obtain evidence of how widespread Respondents’ contracting practices of this nature are without discovery. *See PKDC, LLC v. CMA CGM S.A.*, 2024 WL 5229720, at *8 (emphasizing that Shipping Act claims are “distinct from breach of contract claims, entailing a

different analysis of statutory standards that **includes review of the carrier's broader practices beyond those directly affecting the complainant**") (emphasis added). Discovery regarding similar contracts and conduct by Amazon is relevant because the Act specifies certain essential terms the agreements must contain, *id.* § 40502(c), and the Commission must ensure that certain regulated entities do not operate in violation of the filed agreements, *see id.* §§ 41104(a)(2)(A), 41102(b). Thus, a purpose of the Act is to ensure that entities do not engage in fraudulent or "unjust or unfair" practices to obtain non-market transportation rates, *id.* § 41102(a)" *MSC Mediterranean Shipping Co. S.A. v. Fed. Mar. Comm'n*, 141 F.4th 222, 225 (D.C. Cir. 2025). **Amazon's actions in similar circumstances to China United's are extremely relevant in this case, not only to probe the veracity of Amazon's statements in this matter and its purported contractual interpretation, but to probe the impact of its actions upon the broader shipping market.**

Here, Amazon's corporate representative testified that Amazon terminated its service contract with China United "for cause" because China United disclosed the China United-Amazon relationship. Cullinane Decl., Ex. E (Cardadeiro Tr. 13:22-14:2). Setting aside the fact that Amazon disclosed the relationship on social media in advance of any act by China United, evidence produced in this proceeding reveals that at least one other carrier Amazon partnered with, ZIM, publicly disclosed its relationship with Amazon, just two months prior to China United doing the same, without repercussion. On May 31, 2022, ZIM issued a press release for the launch of its ZL MAX Service. Cullinane Decl., Ex. F (ZIM Press Release). Like the Fast Ocean Service China United provided Amazon, ZL MAX covered the China-U.S. West Coast trade lane, and was optimized for Fulfilled by Amazon ("FBA") sellers in China. *Id.* ZIM referenced Amazon's name no less than five times throughout the release. *Id.* Amazon witnesses confirmed that Amazon's

partnership with ZIM overlapped with this press release. Cullinane Decl, Ex. G (Cardadeiro Tr. 152:12-15); *see* Cullinane Decl., Ex. H (Moore Tr. 21:6-14). And, according to Amazon’s witnesses, that partnership continues to this day. Cullinane Decl, Ex. I (Cardadeiro Tr. 152:12-153:3). China United has reason to believe Amazon’s service contract with ZIM contains the same confidentiality provision as China United’s, but Amazon did not terminate their relationship “for cause” because ZIM could provide Amazon rates for cargo carriage Amazon deemed “favorable” (while China United could not).

China United is entitled to discovery regarding similar service contracts, including when Amazon first began utilizing confidentiality and termination “for cause” provisions to escape its minimum quantity commitments. Because other carriers can disclose their relationship with Amazon without consequence, the discovery sought bears directly upon whether Amazon acted deceitfully when it terminated China United’s service contract under a “for cause” guise. Therefore, China United requests that the Presiding Officer compel Amazon to fully respond to Request Nos. 48-51.

REQUEST NO.	REQUEST	RESPONSE
48	Documents or communications relating to any other instances between July 1, 2022 and September 30, 2023 in which any of Respondents or their wholly-owned or controlled affiliates terminated any contract with any carrier or other logistics services provider or supplier in the Asia- US Transpacific Trade where (i) the contract	Amazon objects to this Request on the grounds that it seeks information that is not relevant to any claim or defense currently pending in this action. Specifically, this Request seeks information related to claim(s) that were dismissed in the June 6 Order Partially Granting Motion to Dismiss. Amazon further objects to this Request as overbroad and unduly burdensome insofar as it seeks documents in which “any of Respondents or their wholly-owned or controlled affiliates” terminated “any” contract with “any” carrier involving termination prior to fulfillment of the MQC because it seeks materials that are not reasonably calculated to lead to the discovery of admissible evidence relevant to any party’s claim or defense in this matter and is therefore not proportional to the needs of this proceeding. This action relates to a

	included any minimum volume commitment by the Respondents or their affiliates, and (ii) Respondents or their affiliates terminated the contract prior to fulfilling such minimum volume commitment.	Shipping Act claim tied to the termination of the parties' contractual relationship. As written, the Request seeks information regarding Amazon's contractual relationships with other parties and contexts unrelated to this proceeding. This information does not relate to the issue of whether the Shipping Act was violated when Amazon invoked its contractual right to terminate the Work Order with CUL for cause. Amazon also objects to this Request to the extent that it seeks documents that are protected by the attorney-client privilege, work product doctrine, and/or any other applicable privilege or protection.
49	Documents or communications showing when, and with which Ocean Carrier counterparties Respondents and their affiliates began using and used ocean service contract forms in trades regulated under the Shipping Act of 1984 and FMC Regulations which included a provision under which Respondent and/or their affiliates would be entitled to terminate the ocean service contract for cause, without paying any liquidated damages for a shortfall of the minimum quantity commitment.	Amazon objects to this Request on the grounds that it seeks information that is not relevant to any claim or defense currently pending in this action. Specifically, this Request seeks information related to claim(s) that were dismissed in the June 6 Order Partially Granting Motion to Dismiss. Amazon further objects to this Request as overbroad and unduly burdensome insofar as it seeks documents in which "Respondents and their affiliates" began using "ocean service contract forms" including "a provision under which Respondent and/or affiliates would be entitled to terminate" for cause without paying liquidated damages because it seeks materials that are not reasonably calculated to lead to the discovery of admissible evidence relevant to any party's claim or defense in this matter and is therefore not proportional to the needs of this proceeding. This action relates to a Shipping Act claim tied to the termination of the parties' contractual relationship. As written, the Request seeks information regarding Amazon's contractual relationships with other parties and contexts unrelated to this proceeding. This information does not relate to the issue of whether the Shipping Act was violated when Amazon invoked its contractual right to terminate the Work Order with CUL for cause. Amazon also objects to this Request to the extent that it seeks documents that are protected by the attorney-client privilege, work product doctrine, and/or any other applicable privilege or protection.
50	Documents or communications	Amazon objects to this Request on the grounds that it seeks information that is not relevant to any claim or

	showing when, and with which Ocean Carrier counterparties Respondents and their affiliates began using and used ocean service contract forms in trades regulated under the Shipping Act of 1984 and FMC Regulations which included a provision in the event the Ocean Carrier party breached its obligations under the Confidentiality provision or any provision under which the Ocean Carrier party was prohibited from disclosing or communicating Amazon's trade name or the existence of the contractual relationship between Respondents and the Ocean Carrier.	defense currently pending in this action. Specifically, this Request seeks information related to claim(s) that were dismissed in the June 6 Order Partially Granting Motion to Dismiss. Amazon further objects to this Request as overbroad and unduly burdensome because it seeks materials that are not reasonably calculated to lead to the discovery of admissible evidence relevant to any party's claim or defense in this matter and is therefore not proportional to the needs of this proceeding. This action relates to a Shipping Act claim tied to the termination of the parties' contractual relationship. As written, the Request seeks information regarding Amazon's contractual relationships with other parties and contexts unrelated to this proceeding. This information does not relate to the issue of whether the Shipping Act was violated when Amazon invoked its contractual right to terminate the Work Order with CUL for cause. Amazon also objects to this Request to the extent that it seeks documents that are protected by the attorney-client privilege, work product doctrine, and/or any other applicable privilege or protection.
51	Documents and communications relating to any termination or material renegotiation of the minimum volume commitment and or ocean rates and charges by Respondents or their affiliates of any service contract similar in nature or drafting to the MTA and Work Order including the provision under which Amazon had a right to terminate the Service Contract without paying any Liquidated Damages for	Amazon objects to this Request on the grounds that it seeks information that is not relevant to any claim or defense currently pending in this action. Specifically, this Request seeks information related to claim(s) that were dismissed in the June 6 Order Partially Granting Motion to Dismiss. Amazon further objects to this Request as overbroad and unduly burdensome because it seeks materials that are not reasonably calculated to lead to the discovery of admissible evidence relevant to any party's claim or defense in this matter and is therefore not proportional to the needs of this proceeding. This action relates to a Shipping Act claim tied to the termination of the parties' contractual relationship. As written, the Request seeks information regarding Amazon's contractual relationships with other parties and contexts unrelated to this proceeding. This information does not relate to the issue of whether the

	a Minimum Quantity Commitment shortfall if CUL disclosed the trade name “Amazon” without prior written consent between July 1, 2022 and September 30, 2023.	Shipping Act was violated when Amazon invoked its contractual right to terminate the Work Order with CUL for cause. Amazon also objects to this Request to the extent that it seeks documents that are protected by the attorney-client privilege, work product doctrine, and/or any other applicable privilege or protection.
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IV. **CONCLUSION**

Amazon has refused to provide discovery that is directly relevant to China United’s claims in the First Amended Complaint, particularly, information regarding similar service contracts with other ocean carriers that directly relate to China United’s allegations that Amazon knowingly and willfully, by means of an unjust or unfair device or means, obtained ocean transportation for property at less than the rates or charges that would otherwise have applied.

For the reasons stated above, Claimant China United Lines, Ltd. respectfully requests that the Presiding Officer compel Amazon to comply with the Discovery Requests and promptly produce the requested documents and information.

Dated: February 13, 2026

Respectfully submitted,

THEODORA ORINGHER PC



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PROOF OF SERVICE

I, David P. Collins, hereby certify that on this 13th day of February, 2026, a copy of the foregoing **Motion to Compel** was served via email, on the following:

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